

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 24, 2026
8:30 AM/1:30 PM

4. JUSTIN HALLOCK V. DEBRA HALLOCK

PFL20200781

Respondent filed a Request for Order (RFO) on June 29, 2026, seeking orders to enroll the minors in public school. Proof of Service shows Petitioner, Minors' Counsel, and the Department of Child Support Services were served on July 2, 2026.

Petitioner filed a Responsive Declaration on August 31, 2026. It was served on Respondent and Minors' Counsel on August 31, 2026.

Minors' Counsel filed a Responsive Declaration on August 31, 2026. It was served on Petitioner and Respondent on August 31, 2026.

Respondent filed a Supplemental Declaration on September 9, 2026, that is wholly unrelated to the request to enroll the minors in public school. Therefore, the court has not considered it in relation to the present hearing.

Respondent filed a Reply Declaration on September 15, 2026. It was served the same day.

The court has reviewed and considered the filings as outlined above. The court notes the parties are currently pending a Family Code section 3111 evaluation. This may impact the custody arrangement. As such, the court finds it to be premature to address the school choice issue. Further, the school year has commenced, and it is not an opportune time to change school. Therefore, the court finds good cause to continue this request to join with the hearing currently pending on November 19, 2026, at 8:30 AM in Department 5 for review of the Family Code section 3111 evaluation. Any supplemental declarations are to be filed and served at least 10 days prior to the hearing. Pending the review hearing all current orders remain in full force and effect.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #4: THE COURT FINDS GOOD CAUSE TO CONTINUE THIS REQUEST TO JOIN WITH THE HEARING CURRENTLY PENDING ON NOVEMBER 19, 2026, AT 8:30 AM IN DEPARTMENT 5 FOR REVIEW OF THE FAMILY CODE SECTION 3111 EVALUATION. ANY SUPPLEMENTAL DECLARATIONS ARE TO BE FILED AND SERVED AT LEAST 10 DAYS PRIOR TO THE HEARING. PENDING THE REVIEW HEARING ALL CURRENT ORDERS REMAIN IN FULL FORCE AND EFFECT.

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RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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5. ALISHA HERRMANN V. PATRICK HERRMANN

26FL0433

On June 25, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders, support orders, attorney's fees, and property orders. She filed her Income and Expense Declaration concurrently therewith. There is no Proof of Service for the moving papers or any of the required supporting documents, nevertheless, Respondent has filed a response to the RFO thereby waiving any potential defect in service.

Respondent filed and served his Responsive Declaration to Request for Order and his Income and Expense Declaration on August 5, 2026. He filed a UCCJEA declaration the same day asserting paternity of the minor.

Petitioner has not filed a reply declaration.

The parties attended Child Custody Recommending Counseling (CCRC) on August 6, 2026 and were able to reach agreements on all custody and visitation issues. A report with those agreements was prepared on August 6th and mailed to the parties on August 7th.

Petitioner is requesting guideline spousal and child support. She requests primary physical custody of the minor and asks that Respondent have parenting time one evening after work during the week and one full day each weekend. She asks that Respondent be ordered to pay Petitioner's outstanding medical debt and that he be ordered to pay for Petitioner's ongoing medical needs and expenses. She asks that the parties be ordered to set a date for Petitioner to retrieve her personal property and that of the minor from the marital residence without Respondent present. Finally, she is requesting \$5,000 in attorney's fees, and all other orders as deemed appropriate by the court.

Respondent opposes Petitioner's requests and instead asks for a 2-2-3 parenting plan. He further asks that the minor be enrolled in Sliva Valley Elementary School in El Dorado Hills, and that she receive all vaccinations required for her to do so. He does not oppose guideline support but asks that he be credited for payments made to Petitioner since the date of the Petition for Dissolution on May 6, 2026. He asks that Petitioner be ordered to participate in a vocational evaluation and that she be ordered to seek fulltime employment submitting 5 applications per week and providing Respondent proof thereof. Finally, he requests a *Gavron* warning and asks that each party bear their own attorney's fees.